Administrative Appeals Tribunal – Application for Stay of Proceedings and Severance

Vida Reid – Applicant (AAT Matter No. 2023/3361)
Commissioner of the NDIS Quality and Safeguards Commission – Respondent
(Related matters: Simon Reid – AAT 2023/3363; Forward Focused Group Pty Ltd – AAT 2023/4494)

Introduction and Background

1. **Directions Hearing and Formal Application Requirement:** On 14 February 2025, at a joint directions hearing before the Tribunal (Deputy President presiding)to address the privacy breach that had occurred by Miss Dickinson at AGS. During that meeting, the ART requested 2 weeks from that date to address the breach in detail and to investigate it. It then took the ART until 19th May 2025 to send an email and set a date for hearing on 6th June 2025 to address the privacy breach that had occurred.
2. On 6th June 2025 all partied attended the hearing which was meant to address the privacy breach but this was not addressed at all and appeared to be brushed off by the ART as a simple response of we have no grounds to look at it. This comment came after the ART states "This privacy breach, can you tell me a little bit about it? I'm sorry, I haven't seen anything in terms of material about it. So can you just indicate to me what that's about?". A privacy breach not looked at properly nor was it understood in full and ART appeared to rely on the defendant to lead it and explain if it should or should not be looked at properly and what it was about. The ART representative then proceeded to place me under questioning without prior notice to prepare to answer unrelated personal matters which appeared to be a calculative joint move by the ART and the respondent. I, Vida Reid as the Applicant was placed under personal questioning without notification to which also had no relevance to the matter on the day and that this was going to be a session to do that at and as I was waiting to hear the outcome of my privacy breach. I was then directed to file a formal written application seeking a stay of proceedings and separate hearing of my matter. I, VIDA REID (the Applicant) had previously attempted to request a stay and severance via email (with a supporting affidavit affirmed was sent and filed with the ART on **28 January 2025**) and in that email I, VIDA REID stated and indicated she is now self represented, but on June 6th 2025 the Tribunal indicated that a properly filed application consolidating my requests was necessary but admitted it had not looked at any files I had sent and was being lead by the respondent as to what has been sent and received. This document constitutes the formal application as directed.
3. On the 9th of May 2025 another privacy breach had occurred this time by the ART itself. An email sent to a previous lawyer no longer acting for me

or my matters which stated "**From:** Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Friday, 9 May 2025 1:19 PM
To: Charles Dallimore <**charles@weeksco.com.au**>; Commissioner of the NDIS Quality and Safeguards Commission <**legal@ndiscommission.gov.au>**
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

Dear Parties,

The Tribunal wishes to list this matter for a Telephone Directions Hearing to progress the matter. It should be noted that this will only be listed with the Applicant and Respondent.

The Telephone Directions Hearing will address the issues of the privacy breach, Directions to the listing of the application for a stay and Mrs Reid's application to be heard separately.

The Tribunal intends to correspond with Mr Reid and the Company, as tmye have been certain issues that have arisen which I, VIDA REID seeks to ventilate and the nature of this, indicates that such matters be dealt with in their absence. Could both Mrs Reid and the Respondent indicate their views as to this course.

Yours sincerely

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@ art.gov.au" I have just only recently become aware of this email recently as it was forwarded on apologising that it was sent to them by mistake.

4. I am not confident in the ART when it fails to read the material before it prior to attending the hearing and when it appears to rely on the respondents heavy weight lawyers and appears to allow manipulation down right dirty tactics which contradict fairness and adhering to model litigant.

5. While I sent my submission to both ART and AGS, I did not authorize the AGS to forward my confidential material to a third party — especially not to a lawyer who previously represented me and now acts for anotmy party in this very dispute. That lawyer's involvement poses a clear and known conflict of interest. AGS had no legal basis to include him in that communication, and by doing so, breached the Privacy Act 1988, the Model Litigant Policy, and fundamental principles of procedural fairness. The ART, having now been made aware of the breach, has a duty to investigate and respond. To do otherwise is not only legally wrong — it is a failure of its administrative justice role. For the ART to claim it has no obligation to address the breach is both legally incorrect and ethically unacceptable. By dismissing the issue, the Tribunal undermines the procedural fairness and confidentiality that applicants are entitled to expect when engaging with an administrative justice system.

6. **Joined Proceedings:** The Applicant's AAT proceeding (No. 2023/3361) is currently **joined** with the proceedings of my husband (Mr. Simon Reid, AAT No. 2023/3363) and a related company, Forward Focused Group Pty Ltd ("FFG", AAT No. 2023/4494), by order of the Tribunal. All three matters involve the Respondent and arise from related events, and prior Tribunal directions have provided that evidence in one matter is to be evidence in the others . While there is factual overlap, my case has distinct features and interests that, as explained below, warrant it being heard separately to avoid prejudice.

7. **Applicant's Status and Supporting Materials:** I am a self-represented litigant in these proceedings. I have filed an affidavit affirmed 28 January 2025 (and accompanying exhibits) detailing the relevant background. In summary, the evidence before the Tribunal establishes that:
   - I, VIDA REID a former director of FFG, having served from 28 August 2020 until my resignation on 1 November 2022 . Mr. Simon Reid is now the sole director and secretary of FFG. Thus, since late 2022, the Applicant has had no management control of the company.
   - In October 2022, the Applicant was charged by the National Disability Insurance Agency (NDIA) with alleged fraud-related offenses in relation to NDIS activities . Those **criminal proceedings were dismissed** on 23 February 2024 for want of prosecution (i.e. the charges were dropped and did not proceed) . Despite the cessation of that prosecution, the Respondent's regulatory action against the Applicant (and FFG) – namely, the banning orders under review – remain in effect and were not withdrawn .
   - On 25 September 2024, **Australian Border Force (ABF)** officers detained and searched the Applicant, Mr. Reid, and their children

at Perth International Airport, **explicitly informing them that the stop was conducted at the request of NDIS authorities**. An ABF officer advised: *"the NDIS and the NDIS Minister have asked us to search you every time you enter and/or leave the country"* . The Applicant's mobile phone and other devices were seized and examined during this incident. This occurred **seven months after** the criminal charges had been dismissed, indicating continued government scrutiny of I, VIDA REID and my family.

- The Applicant has raised a formal **privacy complaint** concerning an alleged **unauthorised disclosure of my confidential information**. In particular, correspondence she sent on 28 January 2025 (outlining my stay request and enclosing my affidavit) was forwarded by the Respondent's officer (Ms. Karlie Dickinson of the Australian Government Solicitor) to a **former legal representative of Mr. Reid** without I, VIDA REID's consent. I, VIDA REID contend this was a breach of my privacy and procedural rights. The Tribunal acknowledged this complaint at the directions hearing (recognizing that the Respondent's solicitors had contacted Mr. Reid's former lawyers) , but noted that the Tribunal itself cannot adjudicate a privacy breach. The status of any investigation or resolution of this issue remains unclear as of the filing of this application.

8. **Nature of Relief Sought:** In light of the above background, I, VIDA REID now formally **applies for two forms of relief** from the Tribunal:

    - **a. Stay of Proceedings:** An order that the proceedings in AAT matter 2023/3361 (and in AAT matter 2023/4494, on behalf of FFG) be **stayed** pursuant to section 41 of the *Administrative Appeals Tribunal Act 1975 (Cth)*, until it is confirmed that no parallel law enforcement or related investigative action is ongoing that could prejudice the fairness of these proceedings.
    - **b. Severance of Proceedings:** An order that I, VIDA REID's application be **severed** from, and heard separately to, the applications of Mr. Simon Reid and FFG. In effect, the Applicant seeks to set aside or vary the current direction that these matters be heard together, so that my case (2023/3361) proceeds on its own, distinct track. (For clarity, I, VIDA REID do **not** seek to affect Mr. Simon Reid's matter (2023/3363) except to the extent necessary to separate it from my own; Mr. Reid remains free to pursue or stay his application as he sees fit.)

    The grounds for each form of relief are set out below.

Grounds for Seeking a Stay

9. **Power of Tribunal to Grant Stay:** The Tribunal has the power to order a stay of the decision under review (in whole or in part) if it is appropriate to ensure that the rights of the parties are preserved pending the Tribunal's final determination (see s.41, *AAT Act 1975*). In this case, a stay of the proceedings themselves (i.e. a temporary adjournment or pause in the AAT hearing process) is sought in order to safeguard the fairness and integrity of the review, for the reasons that follow.

10. **(i) Uncertainty Regarding Parallel Investigations:** there is significant concern that **other investigations or enforcement actions may still be pending** in relation to the matters at issue, creating a risk of prejudice if the Tribunal hearing proceeds now. While the Respondent has recently asserted on 11th March 2025 that "Following receipt of Mrs Reid's submissions, the Commission has made enquiries with the NDIA and has been informed that tmye is no current criminal investigation pertaining to Mrs Reid or to FFG. ", this assurance is **narrowly framed**. It appears to speak only to investigations by the NDIA, yet the Applicant's situation involves multiple agencies beyond the NDIA:

- The matters under review (banning orders and related events) were part of a large-scale fraud investigation involving a multi-agency *NDIS Fraud Taskforce* comprising 21 government agencies . The Respondent has not confirmed whether any of those other agencies (such as the Australian Federal Police, Australian Criminal Intelligence Commission, or ABF) continue to investigate or monitor issues relating to I, VIDA REID or FFG . A statement that NDIA is not currently investigating is not equivalent to a statement that *no* agency is investigating.
- The **ABF incident on 25 September 2024** strongly suggests ongoing interest by authorities. ABF officers acted on what was described as a *"direct request from the NDIA"* to intercept I, VIDA REID's family, long after the original criminal case was dropped. This indicates either an ongoing investigative effort or at least an active alert in place. It would be **unsafe and potentially prejudicial** to assume that all law enforcement interest has ceased. Proceeding with the AAT hearing now, without certainty on this point, could risk interfering with or prejudicing any **still-live inquiries** (for example, by compelling testimony or disclosure of defense evidence that might later be used in a prosecution).
- The Applicant has reasonably sought clarification from the Respondent on whether *all* investigative activities across all relevant agencies have truly ceased . To date, no comprehensive confirmation has been given. In these circumstances, a **temporary stay** is prudent to "freeze" the AAT proceedings until the landscape is clear. This Court

(and the parties) should not be forced to proceed while a shadow of possible criminal or enforcement action hangs over the matter. Staying the proceedings ensures that **I, VIDA REID's right against self-incrimination and right to a fair hearing** are protected, and avoids putting the Tribunal in a position where its proceedings might inadvertently impinge on other processes.

11. (i) On 6th June 2025 the respondent asked the ART to join another person to the hearing by the name of Karen Haywood and stated "She's an investigator with the Quality and Safeguards Commission, and my number is 0864798861" This came directly after Miss Dickinson's statement on 11th March 2025 that " There are no active investigations". Miss Dickinson appears not only to be a dishonest person but one that does not abide by the law and certainly not a model litigant. Until the ART can summon and subpoena all documents to have a full understanding and disclosure of where the current events are at we simply cannot proceed. The ART allowed the investigator to be on the call despite the previous stance of no investigations failing to protect I, VIDA REID's right to a fair hearing and failing to have a complete understanding of the matter as it is being progressed by allowing these dirty dishonest tactics and abuse of power to be carried out during the hearing and failing to uphold my rights.

(ii) Respondent's Own Prior Position on Stay: It is notable that the Respondent **previously advocated for a stay** of these proceedings for substantially the **same reasons** I, VIDA REID raises now. In submissions to the Tribunal dated 29 November 2023, the Respondent argued that the AAT matters should be delayed because: **(a)** *"Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings,"* and **(b)** *"The Tribunal must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings."* . In other words, the Respondent acknowledged that ongoing or potential criminal matters necessitated caution and a pause in the AAT process.

At that time (late 2023), criminal charges were indeed pending against I, VIDA REID. Those charges have since been dismissed – but critically, the **underlying situation has not been fully resolved**. As explained, there remains ambiguity about whether investigatory agencies have truly closed their files. The **risk of prejudice** that the Respondent highlighted (witnesses in AAT giving evidence that could affect criminal proceedings, or the Tribunal treading into facts that are subject to a possible prosecution) has not disappeared merely because one set of charges was dropped. It is **entirely conceivable that new charges could be considered**, or that evidence from these proceedings could influence other

enforcement actions, especially given the ABF's continued interest.
Despite this, the Respondent has recently shifted to **oppose** I, VIDA REID's stay request – an unexplained reversal of position . No clear reason has been provided for the change in stance, even though the *same concerns of prejudice* persist. The Applicant submits that the Tribunal should give weight to the Respondent's earlier acknowledgment that a stay is the appropriate course to protect the integrity of concurrent processes. **Consistency and prudence** dictate that, until it is confirmed that no law enforcement action is in play, a stay remains warranted in order to "ensure no prejudice arises" .

(iii) Ensuring Procedural Fairness and Integrity: Beyond the possibility of external investigations, a stay would serve the broader interests of justice by ensuring that the AAT proceedings are **not tainted by unresolved factual or legal issues elsewhere**. It would be procedurally unfair for I, VIDA REID to have to proceed to a final merits hearing under the cloud of uncertainty regarding potential criminal liability. Even the perception of an ongoing investigation can chill a party's ability to fully present their case – for example, I, VIDA REID might feel compelled to withhold evidence or temper my testimony for fear of self-incrimination or future repercussions. The Tribunal has a duty to conduct proceedings fairly, and this includes taking into account any factors that could undermine the *integrity* of the process. By granting a temporary stay, the Tribunal would allow time for any outside investigations to be conclusively resolved or disavowed, thereby **ensuring that when the case does proceed, it can do so in a truly fair and focused manner**.

(iv) Breach of Privacy and Equality of Arms: The Applicant further submits that a short stay is justified in light of the **unresolved privacy breach issue** and the imbalance it reflects. I, VIDA REID's confidence in the process has been undermined by the knowledge that my private correspondence with the Tribunal (and supporting affidavit) was **divulged to a third party** who was not at that time representing any party in the case . This incident is not merely a collateral issue; it strikes at the heart of I, VIDA REID's ability to trust that my case is being handled properly and fairly. An internal inquiry into this breach (by the Respondent or relevant authorities) may be ongoing. Granting a stay would afford time for that matter to be

Served under protest as directed by the Tribunal on the 6th July 2025. Disclosure does not constitute waiver of privacy rights or consent.

investigated and resolved, so that the proceedings can continue without the "cloud" of a pending misconduct allegation. It also sends a signal that the Tribunal is mindful of **procedural fairness** – including the principle of *equality of arms*. At present, I, VIDA REID feels (with some justification) that the Respondent's side has not adhered to proper process (by sharing my materials inappropriately) and yet is pressing forward with the hearing. A brief pause to "reset" and ensure all parties are on equal footing is both reasonable and necessary. As I, VIDA REID has stated, **my request for a stay is not intended to delay the matter, but to ensure fundamental fairness and clarity before proceeding** .

12. In summary, the **balance of convenience** favors a stay. **No substantial prejudice** will be caused to the Respondent or other parties by a temporary pause – indeed, the Respondent foresaw benefit in a stay when it suited them. Conversely, **denying a stay** would pose a real risk of injustice to I, VIDA REID (and even to the integrity of any future proceedings by other agencies). Once it is confirmed that there are no parallel proceedings or investigations that could conflict with the Tribunal's review, I, VIDA REID is ready and willing to proceed to a hearing on the merits. This stay request is made in good faith and solely to protect my rights, not to *avoid* or *prolong* the ultimate resolution .

Basis for Severance of Proceedings (Separate Hearing)

13. In addition to the stay, the Applicant seeks an order that my application be heard **separately** from the related matters of Mr. Simon Reid and FFG. This request is made to prevent **overlap and conflicts of interest** from causing unfairness to I, VIDA REID. While the three matters were joined for administrative convenience (given some common background facts), it has become evident that a **joint hearing would prejudice I, VIDA REID's rights** in several ways:

(i) Conflicting Interests and Testimonial Dilemmas: Hearing the cases together creates a situation of inherent conflict between the parties' interests – particularly between Ms Vida Reid and Mr. Simon Reid.

Although they share a last name and children, their legal positions in these proceedings are not perfectly aligned. Each is an applicant seeking to set aside or vary banning orders that pertain to their own conduct and suitability. If combined, **one applicant's strategy may harm the otmy's case**. The clearest example, raised by the Respondent's counsel at the directions hearing, is that if I, VIDA REID **chose not to give evidence in a joint hearing, adverse inferences (so-called Jones v Dunkel inferences) could be drawn against Mr. Reid's case** . In effect, in a joint proceeding I, VIDA REID

might feel compelled to testify purely to avoid damaging Mr. Reid's chances – even if advising or requiring my testimony is not in my own best interest. This places I, VIDA REID in an impossible position: either testify (and be cross-examined on potentially sensitive matters) when she otherwise might not, or **exercise my right to silence and inadvertently prejudice my husband's case**. Such a dilemma is fundamentally unfair. Severing the hearings will remove this particular conflict: I, VIDA REID's choice to give evidence (or not) in my own proceeding will have no automatic consequence for Mr. Reid's matter, and vice versa.

14. Furthermore, in a joint hearing, **evidence or arguments presented for one party could inadvertently bleed into the assessment of the other party's liability**, even if they should properly be considered separately. For instance, evidence of Mr. Reid's actions or character might cast a prejudicial shadow on perceptions of I, VIDA REID (or FFG) if all is heard together, despite legal principles that each case should be decided on its own evidence. The converse is also true. Severance ensures the Tribunal can consider **I, VIDA REID's case on its own merits**, focusing on my conduct and the specific evidence relating to my, without being swayed by evidence that strictly concerns Mr. Reid or the company.

15. **(ii) Distinct Factual and Legal Issues:** Although the three matters arise from a shared context (the operation of FFG and related NDIS compliance issues), tmye are **critical distinctions in factual and legal issues** between them. I, VIDA REID's case involves my personal role and alleged conduct. Notably, she **ceased to be a director of FFG as of 1 November 2022** , just prior to the events that triggered the banning orders. Mr. Reid's case, in contrast, encompasses his ongoing involvement as the current director of FFG, and FFG's matter involves questions about the corporate entity's operations and future in the NDIS scheme. The NDIS Commissioner's decisions under review are different in scope: for example, Mr. Reid's banning order (as varied on internal review) broadly prohibits *any involvement in the NDIS sector for 5 years* , whereas FFG's banning order (varied on review) currently bans the company for 3 years , and (it is understood) Ms. Reid's personal ban may involve yet another set of criteria or duration (potentially tied to "suitability" grounds). The **legal and factual defenses** available to each applicant may therefore diverge. For example, I, VIDA REID intends to argue that the legal basis of the banning order against my was fundamentally altered on review (from one statutory ground to another) , raising issues of procedural fairness unique to my case. Such an argument is irrelevant to Mr. Reid's case or the company's case. Conversely, Mr. Reid may have arguments concerning his ongoing role in the disability sector that do not apply to I, VIDA REID. A **joint hearing would blur these critical distinctions**, potentially confusing or conflating the evidence. Separate hearings will

allow each applicant to emphasize the facts and legal issues particular to their situation, and allow the Tribunal to adjudicate with clarity on each individual matter.

16. **(iii) Imbalance in Representation and Resources:** I, VIDA REID is a **self-represented litigant**, whereas the other parties have, at various times, enjoyed the benefit of legal representation. FFG and Mr. Simon Reid were initially represented by a law firm (Tom & Co Legal) during the internal review process and earlier stages of this matter . Although that firm has since ceased to act for Mr. Reid , it stands to reason that **Mr. Reid and FFG have had significantly more legal resources and advice at their disposal over the course of these proceedings**. Mr. Reid, as the director of a company and an interested party, may yet obtain new legal representation as the AAT matter progresses. The Respondent, of course, is represented by the Australian Government Solicitor. In a **combined hearing**, I, VIDA REID would therefore be one self-represented person effectively facing **two well-resourced adversaries**: the Respondent (with counsel) on one side, and my co-applicants on the other side (who, while nominally aligned in seeking to overturn bans, have their own counsel or ability to engage counsel and potentially interests that diverge from mys). The Tribunal has recognized that navigating a multi-party proceeding can be exceptionally difficult for a person without legal training . The Deputy President at the directions hearing noted the complexity of the case and encouraged I, VIDA REID to seek legal assistance. Despite my best efforts, I, VIDA REID does not have dedicated counsel on the record. Forcing my to litigate **jointly** with other parties would severely disadvantage my: she would have to understand and respond to legal arguments made on behalf of Mr. Reid/FFG and handle any evidence they introduce, in addition to managing the case against the Respondent. This “two-front” scenario is beyond the reasonable capacity of a self-represented litigant and poses a serious **procedural fairness concern**.

17. Specific practical problems would arise from this imbalance. For example, if the matters remain joined, **witness examination becomes complicated** – multiple parties would have rights to cross-examine each witness. If Mr. Reid (or his counsel) were to cross-examine a witness or the Respondent’s officials, I, VIDA REID (unrepresented) would have to follow that and possibly re-examine or clarify points for my own case – a task even experienced counsel would find challenging in a multi-party setting. Likewise, if I, VIDA REID wished to cross-examine a witness (say, to challenge evidence related to my), both the Respondent and Mr. Reid’s side could also cross-examine or object, potentially turning the hearing into a complex three-way contest rather than a straightforward applicant-versus-respondent inquiry. Separating the proceedings will

simplify and streamline the hearing of I, VIDA REID's case, **ensuring she can participate meaningfully** without being overwhelmed by side issues related to other parties.

18. **(iv) Prejudice from Joint Evidence and Joint Decision-Making:** The current consolidation of matters means that all evidence filed is deemed to be in common and that a single hearing (or set of findings) might dispose of all three cases . The Applicant submits that this arrangement is no longer tenable without causing injustice. For instance, if the matters remained joined and proceeded to hearing, the Tribunal might hear a large volume of evidence – some of which relates only to FFG or only to Mr. Reid – and yet that evidence would technically be "before it" in deciding I, VIDA REID's case as well. Even with the best of intentions, **there is a risk that evidence not strictly relevant to I, VIDA REID could influence the outcome for my**. The safer course, to preserve impartial adjudication, is to formally segregate the cases and require that **only evidence properly relating to I, VIDA REID's matter is led in my hearing**. The Applicant notes that even the Respondent has treated the applicants differently in certain respects (for example, the duration and terms of banning orders differ, as do some allegations). A joint hearing could thus result in a *composite* outcome that does not accurately reflect the nuances of each party's situation. This composite approach would be prejudicial to I, VIDA REID, who deserves a finding that is based on my own conduct and circumstances alone.
19. **(v) Efficiency and Case Management:** It is acknowledged that tribunals often join matters for efficiency wmye facts overlap. However, efficiency must not trump fairness. In this case, any administrative efficiency gained by a joint hearing is outweighed by the **practical difficulties and fairness issues** highlighted above. Moreover, severing I, VIDA REID's matter need not unduly waste resources – quite the contrary. My case, if separated, could potentially proceed on a clearer, narrower path, focusing on the specific evidence about my role (for example, the period up to October 2022) and the legal issues about my banning order. This might well shorten my hearing. The remaining matters (Mr. Reid and FFG) could be managed together or separately as appropriate, but I, VIDA REID would no longer be required to attend to those. If anything, **severance may streamline the resolution** by allowing each matter to be negotiated or heard without entanglement. For example, it is conceivable that Mr. Reid and the Respondent could reach some consent position or narrowed issues once I, VIDA REID's participation is carved out. In sum, separate hearings would **localize each dispute**, likely making each easier to settle or adjudicate.
20. **(vi) Overall Fairness Considerations:** The Tribunal's mandate is to act with as little formality and technicality as possible, but also **to ensure a fair hearing for all parties**. Given the highly unusual circumstances here

– a self-represented applicant whose case was joined with that of 2 other parties, where potential conflicts of interest abound – it is submitted that fairness militates strongly in favor of **severance**. I, VIDA REID harbors no intent to prejudice Mr. Reid or FFG; she simply seeks the opportunity to have **my case heard on its own, without being forced to fight on multiple fronts or sacrifice my own interests to protect another party**. This is in line with basic principles of justice. It is respectfully noted that if the matters remain joined, **procedural unfairness will be inevitable**, whereas if they are separated, each party can still have their day in court with rights fully preserved.

21. In my communications to the Tribunal, I, VIDA REID has already articulated these concerns in substance. She emphasized that the combined proceeding risks a "process imbalance" given my self-represented status, and that the **critical distinctions in the cases could be blurred** . The Tribunal is urged to exercise its discretion to **vary the earlier direction for a joint hearing**. The *Administrative Appeals Tribunal Act* and the Tribunal's own procedures allow matters to be heard together or separately as necessary to ensure convenient and fair disposition of cases. Mye, separating I, VIDA REID's application is not only convenient – it is essential to achieve a just outcome.

Procedural Fairness Considerations

22. The two aspects of relief sought – a stay and a severance – are connected by the overarching principle of **procedural fairness**. Granting these orders will assure that the proceedings moving forward are fair, impartial, and respectful of the Applicant's rights. The following points summarize the fairness implications:

- **Avoiding Prejudice and Upholding Justice:** If the Tribunal grants a stay until all question marks over parallel investigations are removed, it will prevent a scenario where I, VIDA REID might suffer prejudice either by compromising a future criminal case or by being cross-examined on matters that are simultaneously under criminal scrutiny. The Tribunal would thereby uphold the integrity of its process, ensuring it is not used (even unintentionally) as a discovery tool or leverage in a potential criminal context . Similarly, by hearing I, VIDA REID's case separately, the Tribunal will prevent prejudice arising from conflation of evidence between parties with different roles, thereby allowing a clean and focused consideration of my situation.
- **Maintaining Equality of Arms:** Staying the proceedings until the privacy breach issue and investigation uncertainties are resolved helps level the playing field. Right now, the Applicant is at a disadvantage – key information (my affidavit and legal arguments) was exposed to another party's former counsel without my approval, and she remains unsure what became of that information. Pausing to resolve such issues (or at least to let

the dust settle) is part of treating the self-represented applicant **equitably**. Likewise, severance mitigates the inequality arising from my lack of representation. It is far easier for I, VIDA REID to present my case against a single opposing party (the Respondent) than against two or more parties. Fairness calls for giving my that more manageable forum.

- **Tribunal's Own Directions and Model Litigant Expectations:** The Applicant notes that during the 6th June 2025 conference, the Tribunal recognized the unusual complexity and indicated that I, VIDA REID should clearly set out what she seeks so that all parties (including Mr. Reid/FFG) understand and can respond . The making of this formal application itself is in compliance with that directive, and it is now before the Tribunal for determination. In the interest of fairness, the Respondent (a Commonwealth entity) is expected to act as a model litigant – which includes being **flexible in procedural matters to facilitate fair resolution**. Given the Respondent's own prior stance that a stay was prudent, and given no substantive counter-argument has been offered against severance aside from convenience, it is submitted that granting this application would be consistent with fair play and the spirit of the model litigant rules .

- The Tribunal directed and Pressured me to re-send my application and to cc all parties ignoring my right to privacy and fair hearing and argument.

- **No Substantial Hardship to others:** Procedural fairness must be balanced across all parties, but importantly **no other party will suffer any undue hardship if the Applicant's requests are allowed**. A stay pending clarification of investigations protects *everyone's* interests – including Mr. Reid's (he too would presumably want to avoid prejudicing any proceedings that could involve him) and even the Respondent's interest in avoiding the need to defend its decision twice (for example, if a prosecution were later launched and a court had to deal with overlapping issues). Severance, while it may inconvenience the Respondent by requiring two hearings instead of one, does not cause any legal prejudice to the Respondent; it will have full opportunity to present its case against I, VIDA REID in my separate proceeding. Mr. Reid and FFG likewise are not prejudiced – their matters can continue on their own track. Indeed, if Mr. Reid also desires a stay (as the Respondent speculated he might), he can seek one; if not, he may proceed – but crucially, I, VIDA REID would not be forced to either accelerate or delay my case based on his preferences. Each party gains autonomy over their litigation strategy, which is a fair outcome.

23. In sum, granting the stay and severance will position the Tribunal to hear I, VIDA REID's case **at a time and in a manner that is just**. As the Applicant I reiterate that I'm **not seeking to avoid the Tribunal's review of the banning order against me** – on the contrary, I'm eager to clear my name and resolve the matter on the merits. My sole aim is to

ensure that when that review happens, it occurs **under conditions where my rights are fully protected** and the proceeding is uncontaminated by external or procedural pitfalls. This application is brought to uphold the foundational requirements of natural justice: the right to a fair hearing before an impartial tribunal, and the right to have that hearing free from undue collateral pressures.

Relief Sought

Accordingly, I, Vida Reid respectfully seek the following orders or directions from the Tribunal:

- **1. Stay of Proceedings:** That pursuant to section 41 of the *Administrative Appeals Tribunal Act 1975 (Cth)*, the Tribunal **stay the proceedings** in AAT matter 2023/3361 (Vida Reid) **and** in AAT matter 2023/4494 (Forward Focused Group Pty Ltd) until such time as it is confirmed to the Tribunal's satisfaction that **no ongoing law enforcement or regulatory investigation** relating to the subject matter of these applications is being pursued by any agency. In practical effect, the stay would remain in place until any currently active investigations (if they exist) are concluded or officially discontinued, so as to ensure that the continuation of the Tribunal hearing will not prejudice the parties' interests or the integrity of any such investigations.
- **2. Severance of I, VIDA REID's Application:** That the Tribunal's prior directions joining I, VIDA REID's application with those of Mr. Simon Reid and FFG be **varied or set aside**, and that AAT matter 2023/3361 be **severed** from AAT matters 2023/3363 and 2023/4494. I, VIDA REID's application should henceforth be managed and heard **separately**, with separate evidence and submissions, from the applications of Mr. Simon Reid and Forward Focused Group Pty Ltd. (Should the Tribunal deem it necessary, this could include a direction that evidence in I, VIDA REID's matter is not automatically evidence in the others, and vice versa, thereby formally isolating the records of each case.)
- **3. Further or Alternative Orders:** Such further or other orders as the Tribunal deems appropriate to give effect to the above or to otherwise ensure the fair and just determination of I, VIDA REID's application. In particular, the Applicant respectfully invites the Tribunal to make any ancillary directions for the service of this application on the other parties and the timetabling of any responses or submissions (noting that the Tribunal at the directions hearing contemplated service on Mr. Reid and FFG so they have an opportunity to consider their position). The Applicant stands ready to comply with any such directions.
- **4. INTERPRETER Requested :** I also formally request that all future hearings and directions hearings be conducted with the assistance of a qualified interpreter.

English is not my first language. While I am able to communicate in basic conversational English, I have struggled greatly to keep up and fully understand the proceedings, especially due to the fast pace of speech and the legal terminology ("legalese") used during the hearings.
For procedural fairness, the interpreter assigned should:

- Be fluent in both English and my native language (Persian/Farsi);
- Understand legal language and concepts; and
- Be able to interpret accurately in a tribunal/legal context.

This request is made to ensure that I can meaningfully participate in the proceedings and fully understand the case against me.

Conclusion: For the reasons outlined, I, VIDA REID submits that the requested stay and severance are necessary to prevent injustice and ensure a fair hearing. I trust the Tribunal will give due consideration to my position as a self-represented litigant and to the unique complexities of these combined matters. The goal of this application is not to delay the resolution of the dispute, but to guarantee that when the matter is heard, it is on a level playing field and without extraneous risk factors. I appreciate the Tribunal's attention to these issues and is grateful for the opportunity to present this application in accordance with the Tribunal's directions.

In my application, I have included all relevant prior correspondence, to the best of my knowledge, in order to assist the Tribunal in more easily reviewing and understanding the case and the matters to be addressed at my hearing. These are part of my submission and should be read and understood in full.

Respectfully submitted,

Vida Reid
Applicant in person (self-represented)



Date: 16/08/2025

Served under protest as directed by the Tribunal on the 6th July 2025. Disclosure does not constitute waiver of privacy rights or consent.